

In the Court of Appeal of Alberta

Citation: R v Garland, 2019 ABCA 479

Date: 20191206
Docket: 1701-0085-A
Registry: Calgary

Between:

Her Majesty the Queen

Respondent

- and -

Douglas Robert Garland

Appellant

The Court:

**The Honourable Mr. Justice Peter Costigan
The Honourable Mr. Justice Peter Martin
The Honourable Mr. Justice Thomas W. Wakeling**

Memorandum of Judgment

Appeal from the Conviction by
The Honourable Mr. Justice M.D. Gates
Dated the 16th day of February, 2017
(Docket: 140790361Q1)

Memorandum of Judgment

The Court:

[1] On June 30, 2014, the appellant, acting on a long-standing grudge, killed three people. Following a trial by judge and jury, he was convicted of three counts of first-degree murder and sentenced to imprisonment for life without eligibility for parole until he has served 75 years of that sentence. He has appealed both the conviction and sentence. Only the conviction appeal is before us now.

Background Information

[2] What follows is an overview of some of the material evidence heard at trial. Further evidence will be referred to as needed to properly address the grounds of appeal.

[3] The appellant is described as a 57-year-old highly intelligent loner, with an expertise in computers. At the time of these offences, he was living with his parents on a small farm north of Calgary. He was unmarried and usually unemployed. He drove an old (1994), Ford pickup truck.

[4] Kathy and Alvin Liknes, were a married couple living in southwest Calgary. Mr. Liknes' son by a previous marriage, Allen, was married to the appellant's sister.

[5] Before he retired, Mr. Liknes was in the oil and gas business. For a time, the appellant worked for one of Mr. Liknes' businesses. The two men had a falling out over a pump which Mr. Liknes patented. The appellant claimed he had contributed significantly to the creation of this pump and felt cheated because his contribution had not been acknowledged. Of interest, the pump was not economically viable and had never earned any money. Still, the appellant felt aggrieved and for years kept tabs on Mr. Liknes. In time, his obsession grew to include a fascination with Mrs. Liknes. The appellant regularly conducted computer searches monitoring the activities of both Alvin and Kathy Liknes. The situation was aggravated in December 2013, when the appellant came to believe that Alvin Liknes had stolen some items from the Garland farm.

[6] In early 2014, the Likneses announced that they would be leaving Calgary at the end of June, to move to Evansburg, where they hoped to enjoy their retirement. They began to prepare for that move by listing their home for sale and planning an estate sale of the personal property they no longer needed.

[7] About the same time, the appellant began researching online how to kill and dismember people. As well, he began to accumulate various restraints, including handcuffs, straightjackets and tasers. He went to a butcher supply shop where he bought meat hooks, butcher knives and a meat saw.

[8] He then researched how to cheat and bypass a particular model of Schlage lock, the kind of lock used to secure the Liknes home. Throughout this time the appellant also visited various websites depicting adult women wearing only diapers, fueling an apparent fetish of his, and what were described as various “gore” sites showing bodies being dissected and dismembered.

[9] The Liknes estate sale, which they had announced on Kijiji and related websites, took place during the last week of June 2014. They planned to leave Calgary a few days later.

[10] Kathy Liknes’ adult daughter, Jennifer, brought her infant sons, Nathan, aged five and Max, aged three, to her parents’ house on June 29 to have dinner with them and to enjoy a last sleepover before her parents left Calgary. The younger child, Max, was restless and could not sleep so his mother decided to take him home. She left the Liknes residence at approximately 11:30 pm. About three hours later, the appellant appeared. He disabled the home router, drilled out the Schlage lock and entered the residence. There followed a violent attack that culminated with the Likneses and their grandson, Nathan, being overpowered and taken from the home.

[11] The next morning Jennifer returned to get Nathan. She was met by a bloody scene, the aftermath of a vicious attack. She called 911.

[12] The gravity of the situation was immediately apparent to the police. There was a large amount of blood throughout the house, mixed with broken teeth. A major investigation to find the Likneses and their grandson followed. A forensic pathologist was brought to the scene. She opined that the amount of blood present was indicative of one or more of the victims having been seriously injured, but perhaps still alive.

[13] In the course of the investigation, the police seized videos from security cameras attached to neighbouring homes and businesses. Some of those videos showed a truck closely resembling the unique old truck the appellant drove on the Liknes’ street both at 3:10 am and again at 7:45 am on June 30. That discovery, and the information that the appellant had a long-standing grudge against Alvin Liknes, took the police to the Garland family farm.

[14] On arriving at the farm on July 4, 2014, the police had a decision to make: to enter without a search warrant with the hope that the victims may still be alive but in need of medical assistance, or wait to enter until a search warrant authorizing a search of the property could be obtained. They chose the former. The officer in charge of the investigation instructed his colleagues to enter the property and search only buildings and receptacles that were large enough to conceal a body. He also instructed his officers that if they saw the appellant leaving the property alone, they were to follow him, but if there was more than one person in the truck, they were to intercept it and detain the occupants.

[15] The appellant was soon observed driving his truck away from the property. One of the police spotters mistakenly thought he saw a second person in the vehicle, so it was stopped. As it turned out, the appellant was the sole occupant. He was removed from the vehicle and held in investigative detention. While thus detained, an officer seized the appellant’s footwear. Three

hours later the appellant was formally arrested and charged with kidnapping and assault; two hours thereafter he was charged with three counts of first-degree murder.

[16] During the search of the property, the police found a large smouldering firepit, what appeared to be fresh cut marks on the recently cleaned floor of a nearby greenhouse, and a number of restraints, but no bodies. The police then left, but secured the perimeter of the property until a search warrant could be obtained.

[17] The following day, armed with a search warrant, the police conducted a thorough search of the entire Garland farm. A large amount of highly incriminating evidence was found. Most significant was DNA in the form of blood and/or flesh from all three victims in the firepit and on items including a meat hook and a meat saw.

[18] A computer hard drive was found hidden in the rafters of the home. A forensic examination of the hard drive disclosed what may be described as the appellant's computer surveillance of Mr. and Mrs. Liknes over several months, and articles with titles such as "Kill Without Joy", an autopsy manual, files showing mutilated corpses, and other files offering information on how to destroy DNA evidence. As well there were folders which had videos of adult women wearing only diapers.

[19] Coincidentally, two days after the kidnapping, but before the police focussed on the appellant and his family's farm, an aerial survey took photographs of the area. Photographs of the Garland farm showed what appeared to be three corpses – two adults and a child –all wearing only diapers, lying in grass near the burn-pit.

[20] A day after the kidnapping, an employee of a car wash located in Airdrie, a community near the Garland farm, noted the appellant power washing his truck. Subsequent forensic examination of the truck disclosed Mrs. Liknes' DNA (blood) on the back of the vehicle's licence plate.

[21] The foregoing overview is only a summary highlighting the most incriminating evidence pointing to the appellant as the victims' assailant. The appellant did not testify at trial, neither did he call any evidence in his defence.

[22] That the appellant killed Katherine and Alvin Liknes, and their grandson, Nathan O'Brien, has been proven beyond any doubt and that issue is not disputed on this appeal. Rather, the appellant argues that the trial judge misconstrued evidence that demonstrated the police had violated his *Charter* rights, and subsequently misapplied s. 24(2) to the *Charter* violations he did find. Further, the appellant argues that the trial judge betrayed a bias to the jury during the trial and that he erred in allowing the Crown to introduce some of the "gore" photographs found in the appellant's computer.

The *Charter* Violations and s. 24(2) Analysis

The Appellant's Detention

[23] The *Charter* argument begins with the assertion that the appellant's arrest was arbitrary, the manner of the arrest unreasonable and the seizure of the appellant's footwear illegal. In the result, it is argued that the discovery of DNA (blood) of one of the victims on the appellant's shoes should have been excluded at trial. We will address that matter first.

[24] As mentioned, a truck was captured on video passing by the Liknes residence at 3:10 am, June 30th and again at 7:45 that same morning. On July 4th, the police released a picture of the truck to the media seeking the public's assistance to locate it. The appellant's sister and brother-in-law responded, telling the police that the vehicle was almost certainly that of the appellant and that the appellant had a long-standing grudge against Alvin Liknes aggravated by his belief that Alvin Liknes had stolen some property from the Garland farm during the previous Christmas.

[25] With that information, the police went to the Garland farm. An RCMP Emergency Response Team (ERT) was assembled, which included snipers and a police dog. At the same time, a member of the Calgary Police Service began drafting an ITO (Information to Obtain), a search warrant. At approximately 6:15 pm, the appellant's truck was seen leaving the farm. The police followed in what was described as a "fortified" police vehicle and activated the overhead lights. The appellant brought his vehicle to a stop and was arrested at gunpoint by officers wearing "tac gear" that included body armour and "ballistic helmets". He was placed in investigative detention, Chartered and cautioned, searched for weapons, handcuffed and taken to a police station in Calgary.

[26] This was a better outcome than the police had anticipated. They had feared the appellant might injure them or himself, and accordingly prepared for a "high risk takedown", which included the prospect of ramming his vehicle and even resorting to snipers if necessary. As it turned out, those precautions were not needed; the appellant was arrested without a struggle.

[27] At 7:57 pm, while the appellant was still being held in investigative detention, his footwear was seized. At 10:49 pm, the appellant was formally arrested and charged with kidnapping; at 12:11 the following morning, he was also charged with three counts of murder.

[28] The law regarding investigative detention is not in dispute; the police may detain a person for investigative purposes if there are reasonable grounds to suspect that person is connected to a crime and that the detention is reasonably necessary. That reasonable suspicion must be based on objectively discernible facts: *R v Mann*, 2004 SCC 52 at paras 35 and 45.

[29] The appellant submits that even this relatively low standard was not met in this case. Specifically, he suggests that an ambiguity in the evidence regarding the exact time the Liknes' router was turned off eliminates any reasonable suspicion that he was involved. His argument is this. There was confusion in the evidence as to whether the router was disabled "at" 2:10 am, or "after" 2:10 am. The difference is significant because if it was "at" 2:10 am, then the appellant says he was not likely to be the person responsible since his truck was not seen in the neighbourhood until almost an hour later.

[30] The ambiguity arises from the evidence of a police officer testifying that the router was turned off “at” 2:10 am. The ITO contained the same information. But that was a misstatement. The operation of the router had been explained at trial. Simply put, the evidence was that the router was set up to check in with the server every six hours. Here, the router checked in at 2:10 am but not again at 8:10 am as expected. The reasonable inference arising is that the router was disabled sometime after 2:10 am but before 8:10 am. That is what the trial judge found in his reasons, 2017 ABQB 189 at para 10:

As the investigation at the Liknes home unfolded, investigators determined that the wireless router at the home had been unplugged at some point after 2:10 a.m. on June 30, 2014. Investigators noted that wireless routers can be helpful in identifying cell phones or other wireless devices that connect to them, and that it was the opinion of the investigators that the Liknes router had been intentionally unplugged to avoid detection of wireless devices.

[31] The appellant next argues that evidence of his grudge against Mr. Liknes was so dated (seven years old), as to be too remote to contribute to the reasonable suspicion that he was involved in this crime. The trial judge disagreed. While acknowledging the grudge was dated, he nonetheless found it relevant. That finding was supported by the evidence of family members who testified the grudge was lasting and heartfelt.

[32] In the final analysis it comes to this. The appellant had an abiding grudge against Mr. Liknes. He also had an old truck matching the description of the truck seen passing by the Liknes residence, (40-50 kms from the appellant’s home), at 3:10 on the morning the Liknes residence was broken into and the family assaulted and kidnapped. The crime was facilitated by the router being disabled, suggesting the assailant had a considerable understanding of computers; the appellant is a person with such expertise. That, in the circumstances of this case, provided the legal justification required to place him under investigative detention.

[33] As to the reasonableness of the manner by which the police detained the appellant, ready to ram his vehicle and use snipers if necessary, the trial judge found that the extreme violence used to kidnap three people during a home invasion justified the precautions taken by the police. That finding was reasonable and is therefore entitled to deference. *R v Cornell*, 2010 SCC 31. The fact that during the apprehension the police wore body armour and had their guns drawn was also not inappropriate in the circumstances.

[34] But more importantly, the appellant did not testify at the *voir dire* considering the admissibility of this evidence and accordingly there was no evidence that he was even aware of this contingency plan. His observations appear to be limited to noting that the officers who detained him had their guns drawn, were wearing body armour and helmets and driving a fortified police vehicle. In the circumstances of this case, we see nothing offensive about the manner of the arrest that actually occurred, or the contingency plan that was not implemented, of which the appellant was apparently unaware. The trial judge’s finding and the lack of evidence that the appellant was even aware of the snipers or the plan to ram his vehicle if necessary, is a complete answer to this complaint.

[35] As to the length of the investigative detention before the appellant was formally charged, (more than four hours) the reasonableness of that detention is to be determined by the circumstances of each case, and we find no fault in the trial judge's conclusion that in all of the circumstances of this case that time was not unreasonable. We note as well that the investigative detention ended with the formal arrest of the appellant.

[36] Later in these reasons we will address the trial judge's finding that the blood found on the appellant's footwear was admissible even though the footwear was seized while he was still under investigative detention, in violation of his s. 8 *Charter* right.

The Exigent Search

[37] Again, the applicable law is not in dispute. An exigent search is a warrantless search and warrantless searches are presumptively unreasonable unless authorized by a law which itself is reasonable, and the manner in which the search is executed is reasonable. The obligation is on the Crown to establish on a balance of probabilities that the search was authorized by law and was executed in a reasonable manner.

[38] The common law has recognized for some time that exigent circumstances may create a legal basis for warrantless searches. That concept has since been codified in s. 487.11 of the *Criminal Code*. Similar enactments now authorize police to enter into a dwelling without warrant to effect an arrest where exigent circumstances make it impracticable to first obtain a warrant: s. 529.3(1) of the *Criminal Code*. See also s. 11(7) of the *Controlled Drugs and Substances Act*.

[39] In short, exigent circumstances will justify a warrantless search where the urgency of the situation requires prompt police intervention, either to preserve evidence or to prevent imminent bodily harm or death and it is impracticable to wait for a warrant to authorize the search: *R v Godoy*, [1999] 1 SCR 311, and *R v Kelsy*, 2011 ONCA 605.

[40] There remains some dispute whether a "reasonable suspicion" should be sufficient to justify a search motivated by concerns for public safety. That issue divided the court in *R v MacDonald*, 2014 SCC 3, where the majority, speaking through Lebel J, decided a "reasonable belief" was the appropriate standard, while in their reasons for judgment, Moldaver and Wagner JJ, make a compelling argument that a "reasonable suspicion" should be sufficient. See also *R v Clayton*, 2007 SCC 32 at para 46.

[41] Of interest, the appropriate standard is stipulated in s. 529.3(2) of the *Criminal Code*. There Parliament distinguished between a warrantless entry into a dwelling house motivated by the need to prevent imminent harm or death, and warrantless entry to prevent the destruction of evidence. In the former situation, a "reasonable suspicion" was said to be sufficient, whereas a "reasonable belief" was required to justify a warrantless entry to prevent loss or destruction of evidence. Section 487.11 provides no such guidance. In the case at bar, the trial judge accepted the applicable standard to be "reasonable belief".

[42] In situations involving warrantless searches driven by concerns for public safety (to save people from imminent harm or death), the subject's reasonable expectation of privacy must yield to the safety and well-being of others thought to be at risk. It is recognized that in matters involving

the protection of life and physical safety, the police have no realistic choice but to err on the side of caution: *R v Larson*, 2011 BCCA 454 at para 26. However, the police are not allowed to create their own artificial exigent circumstances and impracticability to wait: *R v Paterson*, 2017 SCC 15 at para 82; and *R v M(N)*, (2007), 223 CCC (3d) 417 (ONSC).

[43] Here the appellant relies on the *Waterfield* test applied by the Supreme Court in *MacDonald* at paras 35-36:

At the first stage of the *Waterfield* test, the court must ask whether the action falls within the general scope of a police duty imposed by statute or recognized at common law.

....

At the second stage, if the answer to the first is affirmative, as it is in this case, the court must inquire into whether the action constitutes a justifiable exercise of powers associated with the duty. As this court held in *Dedman*, ([1985] 2 SCR 2),

The interference with liberty must be necessary for the carrying out of the particular police duty and must be reasonable having regard to the nature of the liberty interfered with and the importance of the public purpose served by the interference.

[44] The appellant concedes that first factor was met but questions: “whether the action constituted a justifiable exercise of police powers. Both the necessity of the interference with liberty and the reasonableness of its execution were at issue.” (Appellant’s factum, para 70)

[45] Both issues were raised at trial and addressed by the trial judge who, after considering the law and the circumstances then known to the police, concluded;

- i) interference with the appellant’s liberty was necessary as the police had a reasonable basis to believe that one or more the victims may be on the appellant’s property, still be alive and in need of medical assistance. (paras 70-71)
- ii) while the search was extensive, it was proportionate and justified by the situation that then existed. (paras 72-76)
- iii) there was no reasonable alternative at the time but to proceed with a warrantless search of the property. (para 77)

[46] These factual findings were well supported by the evidence and consistent with the observation in *Larson*, that in matters involving protection of life the police have little choice but to err on the side of caution. Significantly, it was not alleged the police had an ulterior motive for entering onto the appellant’s property and searching it, other than to find the victims, hopefully still alive. We see no basis to interfere.

[47] The trial judge found that the exigent search should have been restricted to areas on the property capable of concealing a body. We are not convinced that this restriction was necessary, but since it was not disputed on appeal, we will proceed on the same footing as the trial judge. The trial judge's conclusion coincided with the instruction given by the officer in charge of the investigation. However, during the search one of the officers opened and looked into a black bag which contained handcuffs, a knife and a baton. That bag and its contents were not seized until the following day during the authorized search. The trial judge found that the officer's initial examination of the bag amounted to a violation of the appellant's s. 8 *Charter* right. Following a balancing of the s. 24(2) considerations, he admitted the evidence notwithstanding the breach. The appellant challenges the correctness of the ruling. That argument will be addressed later.

The ITO

[48] The appellant submits that once the ITO was stripped of references to evidence unconstitutionally obtained, the remaining information was insufficient to support the issuance of the search warrant. Applying his decision that the exigent search should have been restricted to areas and items capable of concealing a body, the trial judge did excise reference to the contents of the black bag from the ITO. The other observations made by the police during the exigent search, which was lawful and not constitutionally offensive, rightly remained in the ITO.

[49] Next the appellant submits that the failure of the police to include in the ITO information of other possible suspects and motives they may have to harm Mr. Liknes would further have reduced the likelihood of the warrant being issued.

[50] With respect, we disagree. The trial judge considered the relevant law and applied it appropriately to these and other alleged shortcomings. He concluded:

Overall, Det. Sweet fairly summarized the facts available in the spirit of full and frank disclosure as required by a police officer seeking a warrant. While there may have been some omissions, I am satisfied that even without the inclusion of the evidence relating to the contents of the black duffel bag, and with the amplification of the ITO addressing the notable omissions, there is a strong legal basis supporting the issuance of the warrant. The ITO contained several links from the offence to Mr. Garland and the Garland farm, including:

- CCTV footage showing a truck resembling the Garland's Ford F-150 pick-up truck in the immediate vicinity near the Liknes residence around the time of the offence;
- Mr. Garland's known animus towards Alvin Liknes;
- Mr. Garland's cut on his finger and scrape on his head;
- Mr. Garland resided on the farm where the Ford F-150 truck was seen parked; and

- CPS's observations of the Garland farm during the warrantless search. (para 118)

All told, the ITO was a thorough document that went into great detail in summarizing the evidence known to the CPS at the time. It provided a detailed account of witness interviews, crime scene photographs and analysis, expert opinions, CCTV video analysis, and an extensive summary of the findings at the Garland farm during the warrantless search. (para 118)

[51] We can see no error or reason to interfere with these conclusions.

The s. 24(2) Ruling

[52] We turn to consider the trial judge's ruling regarding the admissibility of evidence he found to have been obtained in violation of the appellant's *Charter* rights; the blood (DNA) on his shoes, seized while he was still being held under investigative detention, and the contents of the black bag improperly examined during the exigent search. Applying the *Grant* (*R v. Grant*, 2009 SCC 32) factors the trial judge ruled both admissible.

[53] In *Grant*, the court recast the approach to s. 24(2) of the *Charter* by identifying three lines of inquiry that need to be assessed and balanced in determining whether, after considering all of the circumstances, admission of the impugned evidence would bring the administration of justice into disrepute:

- i. The seriousness of the *Charter* infringing state conduct.
- ii. The impact of a breach on the *Charter* protected interests of the accused.
- iii. Society's interest in the adjudication of the case on its merit.

[54] The court emphasized that "no overarching rule governs how the balance is to be struck." (para 86)

[55] Importantly, in the companion case of *R v Harrison*, 2009 SCC 34, McLachlin CJ, speaking for six members of the court, emphasized:

The balancing exercise mandated by s. 24(2) is a qualitative one, not capable of mathematical precision. *It is not simply a question of whether the majority of the relevant factors favour exclusion in a particular case. The evidence on each line of inquiry must be weighed in the balance, to determine whether, having regard to all the circumstances, admission of the evidence would bring the administration of justice into disrepute.* Disassociation of the justice system from police conduct does not always trump the truth-seeking interests of the criminal justice system. Nor is the converse true. In all cases, it is the long-term reputé of the administration of justice that must be assessed. (para 36, emphasis added)

[56] Subsequently, in *R v Cole*, 2012 SCC 53, Fish J, also speaking on behalf of six members of the court, observed:

Not unlike the considerations under the first and second inquiries, the considerations under this third inquiry must not be permitted to overwhelm the s. 24(2) analysis. (para 95)

[57] In the recent decision of *R v Le*, 2019 SCC 34, the majority put it somewhat differently at para 142:

Where the first and second inquiries, taken together, make a strong case for exclusion, the third inquiry will seldom if ever tip the balance in favour of admissibility. (*Paterson* at para 56)

[58] Taken literally, this statement suggests that the s. 24(2) inquiry may be over when the first two factors are both found to strongly favour exclusion. In other words, that the s. 24(2) inquiry may not need to consider “all of the circumstances”. That would be a significant departure from *Grant* and *Harrison*, which were animated by a concern that the *Collins/Stillman* approach had created an almost automatic exclusionary rule that ignored the express requirement of s. 24(2) to consider “all of the circumstances”. The whole purpose of *Grant* was to correct this problem.

[59] With respect, it is clear that the majority in *Le* did not intend the suggested interpretation. The statement itself claims as its source paragraph 56 of *R v Paterson*, 2017 SCC 15. There the court only emphasized that it was important not to allow the third *Grant* factor – society’s interest in an adjudication on the merits of the case – to overwhelm all other considerations. That statement is an echo of similar statements made numerous times by the Supreme Court since *Grant*, and was noted again in *Le*, also at para 142.

[60] The Saskatchewan Court of Appeal in *R v Moyles*, 2019 SKCA 72, agreed that this passage from *Le* was not intended to signal a departure from *Grant*. There Barrington-Foote JA speaking on behalf of the court observed:

These comments in *McGuffie* [*R v McGuffie*, 2016 ONCA 365 at para 63] and *Le* as to the relative importance of the third line of inquiry do not change the test described in *Harrison*, which is based on the reasoning in *Grant*. The rule identified in *McGuffie* and *Le* is not absolute. Rather, it reflects the likely outcome of the final stage balancing in certain circumstances. In every case, the overarching question remains the impact of inclusion or exclusion on the repute of justice, and the answer to that question turns on all of the circumstances. (para 104)

[61] We agree with that observation and conclude that the proper approach to a s. 24(2) determination of the admissibility of evidence obtained in violation of a *Charter* right remains as prescribed in *Grant* and *Harrison*.

[62] We return to the case at bar. To recap, the footwear was found to have been wrongly seized while the appellant was under investigative detention at 7:57 pm on the evening of July 4th. Approximately three hours later, while still in custody, he was formally arrested and charged with

kidnapping; two hours thereafter he was charged with murder. In his ruling, the trial judge properly noted that the extent of the violation amounted to a premature seizure, that had the police waited three hours the footwear could have been seized legally. He found that in such circumstances the *Grant* factors favoured admission of the evidence. We can see no error in that analysis.

[63] As to the contents of the black bag, the trial judge noted neither the bag nor its contents were disturbed or removed during the exigent search but both were seized during the authorized search the following day. The trial judge also accepted the officer's looking into the bag was the result of an honest mistake and "not malicious". On that basis he found the breach to be "limited", the impact on the appellant insignificant, and the pull of the third *Grant* factor, society's interest in an adjudication on the merits, to dominate. Again, we see no reason to interfere.

The "Gore" Pictures

[64] As mentioned, while executing the search warrant, the police found a computer hard drive hidden in the appellant's basement. A forensic analysis of that hard drive revealed numerous online searches of Mr. and Mrs. Liknes, their estate sale, Mr. Liknes' patents, how to pick locks, "fetish pornography", methods of restraint, torture and dismemberment. One folder on the hard drive was entitled "Gore" with photographs of dead, dismembered and mutilated women.

[65] At trial, the appellant contested the admissibility of six of these gore photographs of autopsied and dismembered women, and pictures of diapered and restrained women. It was the Crown's position that the photographs were relevant and important to establish the appellant's mindset and the degree of planning and deliberation that accompanied the killings.

[66] All agreed the photographs were prejudicial, the question was whether the probative value outweighed the prejudicial effect. On this issue, the appellant's counsel stressed that there was no evidence the victims had ever been restrained in the fashion shown in the photographs or that they had been dismembered, and that the evidence of diapering was equivocal. Therefore, as there was no evidence to connect the photographs to the facts in issue, they should not have been admitted at trial.

[67] Crown counsel countered that the photographic evidence found in the appellant's computer, combined with the physical evidence found at his farm, established a reasonable basis for the jury to infer that he planned to kidnap, torture and ultimately kill the victims. As to the appellant's submission that, as the bodies were never found, it is pure speculation to suggest that they may have been dismembered or otherwise abused, Crown counsel relied on the recent decision in *R v Calnen*, 2019 SCC 6 at paras 135-136, where Martin J, speaking for the court, observed:

... the absence of supporting physical evidence does not, as a general rule, make the inference sought speculative. To hold otherwise [would] unduly limit the scope of [the] after-the-fact conduct evidence in certain cases, and to place cases in which the accused ha[d] successfully destroyed the body of the deceased beyond the realm

of proof. ... If the totality of the evidence satisfies the chain of reasoning for a particular inference, then that inference is available – regardless of whether supporting physical evidence is part of the evidentiary record.

[68] Ultimately the trial judge ruled that the photographs were admissible and before they were shown, he instructed the jury as to their permissible use. He specifically cautioned them that they could not be used to establish either propensity or bad character. Those instructions appeared to satisfy trial counsel.

[69] Decisions of this kind, where the evidence is clearly prejudicial but also highly probative, are difficult. They are best left to the trial judge, who has a full appreciation of the nuances of the case, to decide. Absent a palpable or overriding error, such decisions are entitled to deference. We see no such error here.

Allegation of Judicial Bias

[70] Finally, the appellant alleges that certain comments by the trial judge to the jury betrayed an apprehension of bias, warranting a new trial. To put the complaint in context, this was a horrendous crime. On approximately three occasions, the trial judge, on his own initiative, spoke to the jury immediately before some particularly gruesome evidence was about to be introduced to alert them that it was coming, and generally to assure them that he understood they may be upset by some of the evidence already introduced. The impugned comments include the following:

- i. “Some evidence that I know is very difficult and troubling. It is troubling to all of us.”
- ii. “The second thing is I want to tell you that I know yesterday was difficult. It was difficult for me too. It is difficult for everyone.”
- iii. “Some of this is difficult. Today is difficult. So if you want a break, we will take a break.”
- iv. “... and most particularly the disturbing evidence that was introduced during the course of this trial.”
- v. “... recognize that you have been through a difficult, even distressing experience.”
- vi. “... keep the juror assistance and support program materials that I asked to be given to you at the beginning of the trial, close at hand.”

[71] With respect, viewed in the context of this difficult trial, we find nothing inappropriate about these comments. Nor do we find that they betrayed any bias on the part of the trial judge.

Conclusion

[72] The appeal is dismissed.

Appeal heard on May 9, 2019

Memorandum filed at Calgary, Alberta
this 6th day of December, 2019

Authorized to sign for: Costigan J.A.

Martin J.A.

Authorized to sign for: Wakeling J.A.

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